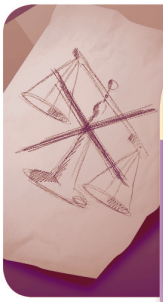
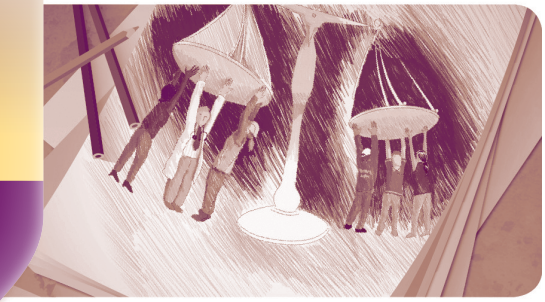


Re-visioning Justice

RESTORATIVE JUSTICE WEEK 2011



A Relational Vision of Justice

By Jennifer Llewellyn

The theme "re-visioning justice" invites important reflection upon the very idea of justice that restorative justice (RJ) represents. The centrality of relationships is a common thread in RJ principles and practice. Despite this, there has been relatively little attention paid to the significance of relationships and the implications this might have for our vision of justice.

Throughout much of my scholarly work I have suggested that relationship is at the heart of the re-visioning of justice that RJ entails.[1] RJ is not simply a set of alternative practices that take relationships into account or seek to address the harmful effects of crime on relationships. RJ is, I suggest, a relational theory of justice. That is to say, it is about more than doing justice in a different way–it is a different way of understanding what "doing justice" is all about.

As a relational theory of justice, RJ is rooted in a relational understanding of human beings and the world. It starts from the fundamental assumption that human beings are inherently relational. This is more than merely a description about the way in which we live or a claim about the benefits that relationships bring. Human beings do indeed live in relationships with one another, but, a relational theory claims that we could not do otherwise. We are, on this account, formed *in and through* relationship with others. Relationship is central to who we are and who we become. This is not to say that we are just the sum of our relationships or wholly determined by them. We still make choices for ourselves and are responsible for those choices. But a relational approach reveals the extent to which our choices are made possible by and realized with the help of others. Our choices also affect others.

This relational understanding of human beings challenges the prevailing story of who we are, how we are connected, and what we need and deserve from one another. This prevailing story, which underlines many of our social and political institutions and systems, is that of an independent, self-sufficient individual who seeks protection and security in rights that hold others at bay; who seeks safety in a justice system that lays blame and punishes the *individual* at fault; who finds success by pulling themselves up by their boot straps; and who sees freedom as acting without the involvement or interference of others.

But we know from experience that this is not who we are, not how we live and not what we need to flourish and be well. RJ is grounded in a different story of human beings: a story that resonates because it fits with what we know of ourselves and the world. Starting from a view of human beings as relational does not mean that relationships are necessarily to be valued, promoted or protected; that we should always seek happy endings where everyone hugs and makes up. A relational approach recognizes that relationships just *are*–for good or for bad we live in relationship. This starting point raises a central question: what qualities of relationship do we require in order to promote and protect individual flourishing and wellbeing? This is the central question of justice re-visioned relationally. The goal of justice is to achieve, protect and maintain just social relations. We know the basic requirements of such relationship from our experience of relationship that is harmful (marked by oppression, violence, abuse or neglect, etc.). From this knowledge we can derive the character of just social relationship. I refer to this as "equality of relationship" and by this I mean relationship in which the parties accord one another equal respect, concern and dignity.

What this will require is a question that must be asked in the particular context of the parties involved. It is the central question that must animate restorative processes and practices. In the wake of wrongful acts that diminish or prevent equality of relationship, RJ looks to address the harm and establish equality of relationship. Once RJ is understood as concerned with the promotion and protection of just social relations, one can clearly see its relevance and reach beyond the criminal realm, and indeed beyond our narrowly defined justice system to many of our social and political institutions and systems.

As a theory of justice, RJ has far greater significance than simply alternative practices within the justice system or even exported to other areas. It is not primarily the practices of RJ that hold the promise for other social institutions and systems but, rather, its relational vision of human beings. It is this vision that seeds a restorative approach to our collective life and the institutions and systems through which we pursue a just society.

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1 Jennifer J. Llewellyn, "Restorative Justice: Thinking Relationally About Justice" in J. Downie & J. Llewellyn (eds.) *Being Relational: Reflections on Relational Theory and Health Law* (forthcoming fall 2011 from UBC Press).

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